



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Office Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 18, 2023 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Florence D. Detecio, RN
Hon. Jo Madel D. Domalaon
Hon. Bienvenido D. Ayo, Jr.
Hon. Luis Lee E. Espeña, Jr.
Hon. Alice D. Emano
Hon. Rodolfo E. Diolata
Hon. Juan D. Ebid
Hon. Albert D. Destura
Hon. Antonio J. Emano, Jr.
Hon. Ronniel D. Diolata

Municipal Vice Mayor/Presiding Officer

S. B. Member

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LnB Pres. /S. B. Member

SKMF President/S. B. Member



ABSENT:

None

ORDINANCE NO. 2023-10

Introduced by Hon. Florence D. Detecio, RN

AN ORDINANCE AUTHORIZING THE GRANT OF MONETARY INCENTIVE TO ANY PERSON WHO VOLUNTARILY SURRENDERS LIVE SEA TURTLES (PAWIKAN) AND OTHER IDENTIFIED ENDANGERED WILDLIFE SPECIES TO THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND PROVIDING FUND THEREFOR

Be it ordained by the Sangguniang Bayan in session,

Section 1. SHORT TITLE

This ordinance shall be known as "Grant of Monetary Incentives to those who voluntarily surrenders live sea turtles and any other endangered wildlife species to the Local Government Unit of Prieto Diaz, Sorsogon".

Section 2. OBJECTIVE

This ordinance aims to provide monetary incentive and recognition to all individuals who accidentally caught sea turtles and other endangered wildlife species and to encourage them show care and concern for these animals by surrendering these live species to the Local Government Unit of Prieto Diaz.

Section 3. LEGAL BASIS

Due to their conservation status and their important role in coastal and marine ecosystems, sea turtles, and other wild animals/species are protected by Republic Act No. 9147.

Section 4. RATIONALE

Sea turtles (pawikan) and other endangered wildlife species need conservation and protection. These species become endangered for two main reasons: loss of habitat and loss of genetic variation. Sea turtles and other endangered wildlife species are fast declining due to rampant illegal wildlife trade, incidental capture by fishing nets (bycatch), nest depredation, poaching, climate change and other man-made threats. There are however individuals who show concern and are willing to help in the conservation of marine life, resources and biodiversity, thus, they deserve to be given incentive and recognition.

Section 5. DEFINITION OF TERMS

- a. Sea turtles – locally known as “pawikan”; any of the 5 sea turtle species found in the Philippines (green turtle, hawksbill turtle, loggerhead turtle, leatherback turtle, and olive ridley), all of which are considered endangered;
- b. Endangered wildlife species – species threatened by extinction, more particularly identified and described in Section 7
- c. OMENRO - Office of the Municipal Environment and Natural Resources Officer; office in charge of the implementation of this ordinance

Section 6. MONETARY INCENTIVE AND COMMENDATION

Any person who, in any manner, accidentally caught sea turtles (pawikan) or other endangered wildlife species common in the municipality and voluntarily surrenders the same, alive, to the Office of the Municipal Environment and Natural Resources Officer, shall be entitled to a monetary incentive and shall be awarded with a Certificate of Commendation.

Section 7. NAMES OF IDENTIFIED ENDANGERED WILDLIFE SPECIES

COMMON NAME	LOCAL NAME
1. monkey	<i>ukay</i>
2. Philippine serpent eagle	<i>agila</i> or <i>tikwi</i>
3. python	<i>sawa</i>
4. wild cat	<i>singgalong</i>
5. civet cat	<i>amid</i>
6. owl	<i>botbot</i>
7. migratory birds	

Section 8. SIZE OR WEIGHT AND ITS CORRESPONDING MONETARY INCENTIVE

LIVE SEA TURTLES	
Small Size (30 Centimeters and below)	P 300.00
Medium Size (31 to 60 Centimeters)	P 500.00
Large Size (61 Centimeters and above)	P 1000.00
OTHER ENDANGERED SPECIES	
Any size or gender	P 500.00

Section 9. RESPONSIBILITY OF THE LGU THROUGH THE OMENRO

It shall be the duty of the Office of the Municipal Environment and Natural Resources Officer (OMENRO) to:

1. Conduct assessment on the physical and health condition of the sea turtles and other endangered wildlife species.
2. Identify the species, sex, measurement and weight and other important information about the species and keep a record of it.
3. Record personal information on the person who surrenders the species specifically pertaining to the person's name, address, the manner and the place it was caught;
4. Tag (whenever tags are available) and release the sea turtle and/or other endangered wildlife species to the areas where it is best suitable, with proper documentations;
5. Process the necessary papers for the monetary incentives from the LGU.
6. Release the monetary incentive and award the certificate of commendation signed by the MENRO, Chairman on SB Committee on Environment and Natural Resources, the Municipal Vice Mayor and the Municipal Mayor

Section 8. APPROPRIATION

Funding appropriation of no less than fifty thousand (P 50,000.00) pesos shall be appropriated under the MOOE of the Office of the Mayor for year 2024 and every year thereafter.

Section 9. SEPARABILITY CLAUSE

If, any reason, any part or provision of this ordinance shall be held unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

Section 10. REPEALING CLAUSE

All ordinances and resolutions, or parts thereof which are inconsistent with any provisions of this ordinance are hereby repealed or modified accordingly.

Section 11. EFFECTIVITY

This ordinance shall take effect immediately upon compliance with the posting requirement as provided for in the Local Government Code of 1991.

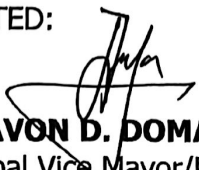
ENACTED: September 18, 2023

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Ms. Charito Amor Lagadia, OIC-MENRO; and all concerned for their information and appropriate action and all concerned for their information and appropriation action.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer


APPROVED:
Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: OCT 06 2023



SANGGUNIANG PANLALAWIGAN

SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700

DEC 11 2023

EXCERPT FROM THE JOURNAL OF THE 70TH REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON NOVEMBER 06, 2023 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano*
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Juan G. Guysayko
Hon. Benito L. Doma
Hon. Roland R. Afionuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

*Absent

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RESOLUTION NO. 625-2023

RESOLUTION DECLARING VALID PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2023-10, ENTITLED: "AN ORDINANCE AUTHORIZING THE GRANT OF MONETARY INCENTIVE TO ANY PERSON WHO VOLUNTARILY SURRENDERS LIVE SEA TURTLES (PAWIKAN) AND OTHER IDENTIFIED ENDANGERED WILDLIFE SPECIES TO THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND PROVIDING FUND THEREFOR."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Municipal Ordinance No. 2023-10 for review and appropriate action;

WHEREAS, the subject ordinance aims to provide monetary incentive and recognition to individuals who accidentally caught sea turtles and other endangered wildlife species upon surrendering them to the Municipal Government of Prieto Diaz, Sorsogon;

WHEREAS, the ordinance is *intra vires* as provided in Section 3(i) of Republic Act No. 7160, also known as the Local Government Code of 1991, which provides:

"Local government units shall share the with the national government the responsibility in the management and maintenance of ecological balance

within their territorial jurisdiction, subject to the provisions of this code and national policies”;

WHEREAS, the Implementing Rules and Regulations should be created to prevent the possibility of abuse on the claims of incentives and for the proper implementation of the ordinance;

NOW, THEREFORE, on motion of Hon. Eduardo E. Ong, Jr., jointly seconded by Hon. Ramil M. Robles and Hon. Maria “Nini” O. Ravanilla, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ MUNICIPAL ORDINANCE NO. 2023-10, ENTITLED: “AN ORDINANCE AUTHORIZING THE GRANT OF MONETARY INCENTIVE TO ANY PERSON WHO VOLUNTARILY SURRENDERS LIVE SEA TURTLES (PAWIKAN) AND OTHER IDENTIFIED ENDANGERED WILDLIFE SPECIES TO THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON AND PROVIDING FUND THEREFOR.”**

LET COPIES of this resolution be furnished Pto. Diaz Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

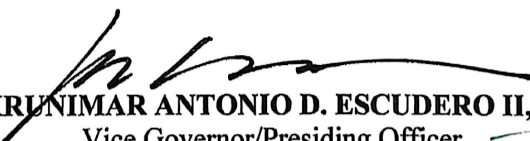
APPROVED.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRÜNIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer